

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN UKRAINE

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Ukraine, grounded in the 2017 Environmental Impact Assessment Law, the Unified EIA Register, mandatory public discussion and hearings, Aarhus Convention rights, and the wartime and reconstruction context

This guide uses the Ukrainian legal terms you will actually encounter (planned activity and its first and second categories, the notification, the EIA report, public discussion and public hearings, the EIA conclusion, the Unified Register, the administrative court, and so on), each explained in plain language where it first comes up. Ukraine's EIA law has been amended during the war and further amendment continues; the core mechanics below apply, but always check the current text.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Ukrainian terms are given with a short English gloss.

A note on money. Budgets in this guide are in hryvnia (UAH). Every figure is indicative — Ukrainian community campaigns are frequently run at low cost, because the documents are online and free and the country has experienced environmental law organisations. Treat the ranges as a menu, not a bill.

A note on the war. Martial law has changed how some of this works, and in areas affected by hostilities or occupation the ordinary assumptions do not hold at all. Some wartime restrictions on participation were later reversed, partly through the efforts described below. Reconstruction projects raise their own questions. Section 13 addresses this directly; read it before acting.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Ukraine — and Ukrainian communities have a tool that most of the countries in this series lack: **everything happens on a public online register**. Under the **Law on Environmental Impact Assessment No. 2059-VIII**, adopted in 2017 to transpose the European Union's environmental assessment directive and replacing the Soviet-era system of "state ecological expertise", a developer proposing a **planned activity** must publish a **notification**, prepare an **EIA report**, and go through **public discussion including mandatory public hearings** before the authority issues an **EIA conclusion** — and that conclusion must be taken into account **before any**

permit for the activity can be granted. Failure to comply can result in the **suspension or termination** of the activity.

The **Unified Register of Environmental Impact Assessment** is what makes this usable. It is a single information system holding the notification of planned activity, the EIA report, the results of the public discussion, **the comments and proposals received**, the conclusion itself, and material on transboundary assessment. Your comments go into a public file; the authority is **required to consider them**; and the record of what you said and what was done with it is preserved where anyone — including a court — can see it. The costs of the public discussion are borne by the developer, not the public.

Behind that sits Ukraine's membership of the **Aarhus Convention** on access to information, public participation, and access to justice in environmental matters — and, unusually, a live demonstration of what that membership is worth. When wartime measures narrowed the scope of assessment and closed public access to the register, Ukrainian environmental organisations campaigned to recover those rights, took part in the Ministry's redrafting, and **brought the matter to the Aarhus Convention Compliance Committee**, whose recommendations helped produce amendments that **restored the scope of assessment — including for reconstruction projects — and created a register open to the public**, with authorisation and case-by-case protection for genuinely sensitive information. That is a rare and instructive thing: participation rights, lost in an emergency, argued back.

The honest counterweight is substantial. Ukraine is fighting a full-scale war, and in areas affected by hostilities or occupation none of the ordinary mechanisms operate normally. Martial law has justified derogations, and the balance between transparency and security is unsettled. Reconstruction will bring enormous pressure to build fast, and the temptation to shorten procedure with it. Institutions are stretched, and the country's pre-war record of environmental enforcement was uneven. And a community whose comments are considered and rejected still needs a court to go further.

What "winning" realistically means. Rarely the outright abandonment of a project. More often: a **negative EIA conclusion**, or a conclusion so conditioned that the project changes; commitments written into the conclusion and then enforced through permits; a **defective procedure identified** — no proper notification, a hearing that did not happen or could not be attended, comments never considered — and the conclusion **annulled by an administrative court**; a project delayed; or a reconstruction scheme brought properly within assessment rather than waved through. The realistic goal is to **use the register and the hearing while they are open**, build a record the authority must answer, and be ready to go to court on the procedure.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down the planned activity, its category, the responsible authority, and the register entries and deadlines.
2. **Documentation** — build an evidence record strong enough for the public discussion, the authority, and a court.
3. **Local opposition** — organise the community so that comments arrive in volume and the hearing is attended.
4. **Legal challenges** — use the register, the hearing, the comments procedure, Aarhus rights, and the administrative courts.
5. **Media strategy** — generate coverage that raises the cost and reaches the organisations that litigate.

No single step wins alone. In Ukraine the combination that works is **a documented, timely intervention on the register plus a court challenge on procedure**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Ukraine's system is transparent on paper but strained by war, and reconstruction pressure will test it. Assessing that honestly helps you choose the right tools: the strongest routes are to **file comments within the deadline** so they must be considered, to **attend and document the hearing**, to insist that reconstruction and modification projects are **within the scope of assessment**, and to challenge a defective procedure in the **administrative court** — with the **Aarhus Convention** available as an argument and, ultimately, as a compliance route. A tilt changes which lever works; it does not remove them all. Section 13 deals honestly with the wartime situation.

How to use this guide

Read Sections 1–3 and Section 13 once. Then work Section 4 (Target Identification) immediately — the register tells you almost everything, and the comment deadline is strict. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Ukraine is a unitary state with **oblasts** (regions), **rayons** (districts), and — since decentralisation — **territorial communities (hromadas)** with real local powers. Environmental assessment rests on the **Law on Environmental Impact Assessment No. 2059-VIII of 23 May 2017**, which became mandatory on **18 December 2017**, together with Cabinet of Ministers regulations adopted to implement it, including the procedure for **public discussion** and the procedure for maintaining the **Unified Register**.

The bodies that decide — and what each one controls

The Ministry responsible for environment. The **central authority** for environmental assessment. For **first category** planned activities — the larger and more significant ones — the documentation is submitted to the Ministry, which conducts the assessment and issues the **EIA conclusion**.

The regional (oblast) environmental authority. For **second category** activities, the assessment is handled by the relevant subdivision on ecology and natural resources of the regional state administration. Knowing which category applies tells you which body to address, and it is the first practical question.

The permitting authorities. The EIA conclusion is not itself the permit. Construction, land, water use, and sectoral permissions are issued separately — but the conclusion must be **taken into account before the permit for the planned activity is granted**, which makes the assessment a gate rather than an opinion.

Local self-government and the hromada. Councils control land-use planning, local permissions, and the detailed plans of territory; they are also consulted in the assessment process, and a hromada council formally opposed to a project is a serious obstacle. Executive bodies and local government bodies are consulted during the public discussion, and their input is entered into the register.

The administrative courts. Ukraine has a distinct system of administrative courts hearing challenges to the decisions, actions and omissions of public authorities — the route for challenging an EIA conclusion or a permit.

Which one is "yours"? Ask: is the project a **planned activity** subject to assessment, and is it **first or second category**? Which body — Ministry or oblast — is handling it? What is already on the **Unified Register**? Which permits will follow, and from whom? Pinning this down is Step 1, and most of it can be done from the register in an afternoon.

How a decision is actually made — the journey of a project

Under the EIA Law the path is roughly:

1. **Notification of planned activity.** The developer files a **notification**, which is entered in the **Unified Register** and published in print media. This is the first public signal, and it is worth watching the register for activity in your area precisely because it appears here first.
2. **The EIA report.** The developer prepares the report, at its own cost, addressing the impacts of the planned activity.
3. **Announcement of public discussion.** An announcement is published in the register and in print media specifying the **date, time and address of the public hearings** and the period for comments.
4. **Public discussion and mandatory public hearings.** Hearings are **compulsory** in the assessment process, and are organised by the Ministry or the regional authority depending on the category. **Comments and proposals submitted within the period are subject to mandatory consideration; comments submitted after the deadline will not be considered;** and if no comments are received in time, the law treats the matter as if there were none. **The costs of the public discussion are borne by the developer.**
5. **Consultation with authorities.** Executive bodies and local government bodies are consulted in writing or electronically during the discussion period, and their responses are entered in the register within one working day of the period closing and published there.
6. **The public discussion report.** A report on the results of the public discussion is prepared and **entered in the Unified Register** — the document that records what the public said and how it was treated.
7. **The EIA conclusion.** The authority assesses the report and the results of the discussion and issues the **conclusion**, which is published in the register.
8. **Permits.** The conclusion must be **considered before the permit for the planned activity is granted**. Carrying on a planned activity without complying can lead to **temporary prohibition (suspension) or termination** of the activity.

The rulebook — the policies that decide the outcome

- **The EIA Law No. 2059-VIII and its implementing regulations.** Was the activity subject to assessment at all? Was the correct category applied? Was the notification published? Was the public discussion properly announced and the hearing actually held and accessible? Were comments received in time **considered**, and does the record show how? Was the conclusion reasoned?
- **The Aarhus Convention.** Ukraine is a Party, and the Convention's guarantees on **access to information, public participation and access to justice** are directly relevant arguments — with the Convention's **Compliance Committee** available where a systemic failure persists.
- **The EU assessment directive.** The Law was adopted to transpose it, so its purposes and standards are legitimate interpretive material, and increasingly so as Ukraine's accession process advances.
- **Sector and planning law.** Construction, land, water, forest and protected-area rules carry their own permissions and their own vulnerabilities.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Ukraine faces overwhelming pressure to rebuild and to attract investment, and speed is a genuine public good in a country repairing bombed infrastructure — which creates real and understandable pressure to streamline procedure. Assessment reports are commissioned and paid for by developers. Institutions are stretched by the war. And reconstruction financing arrives with its own timetables. None of this is improper, but it explains the default lean toward approval — and why the community's decisive levers are **the register, the deadline, and the courts**.

The overseers — who watches the decision-makers

- **The administrative courts** — the route to annul an unlawful conclusion or permit.
- **The Aarhus Convention Compliance Committee** — which has considered communications concerning Ukraine, and whose recommendations contributed to the restoration of participation rights curtailed during the war.
- **The State Environmental Inspectorate** — enforcement, and, in wartime, the body compiling assessments of environmental damage.
- **Local councils and deputies** — a practical route, with local knowledge and standing.
- **Ukraine's environmental law organisations** — the country has organisations with deep experience of Aarhus implementation and environmental litigation, including bodies that helped negotiate the Convention itself and that ran the campaign to restore wartime participation rights.

Naming and using the right body matters: in Ukraine the most consequential early judgment is usually **whether you are inside the comment period**, because comments filed in time must be considered and comments filed late will not be.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Ukrainian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Ukraine sits inside the table: because the whole process runs through a **public register with a hard comment deadline**, the difference between a strong campaign and no campaign at all is usually whether anyone filed **in time**.

Individual Step Success Rates

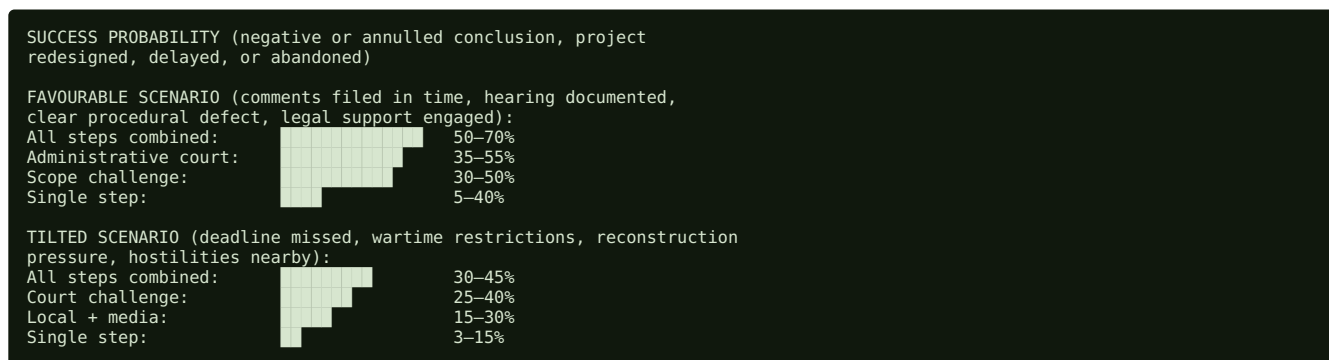
Approach	Success Rate	Timeline	Cost (UAH)	What "Success" Means
Documentation only	5-10%	1-2 months	low	Basis for every other step
Local opposition only	20-30%	3-12 months	low	Political pressure; council engagement
Comments filed within the period	25-40%	days-weeks	minimal	Mandatory consideration; conditions or refusal
Attending and documenting the hearing	20-35%	days	minimal	Record built; procedural defects captured

Scope challenge (activity should be assessed)	30-50%	1-6 months	low	Assessment required where it was skipped
Hromada council opposition	25-40%	1-6 months	low	Local permissions withheld; political cost
Administrative court challenge	35-55%	6-24 months	moderate	Conclusion or permit annulled
Aarhus-based argument / communication	20-40%	6-36 months	low	Systemic failure addressed; law amended
Media only	15-25%	1-6 months	low	Public knows; pressure rises
Docs + local opposition + media	30-45%	3-12 months	low-moderate	Pressure plus stronger case
All steps combined	50-70%	6-30 months	moderate	Conclusion negative or annulled, project redesigned, delayed, or abandoned

Key insight: all steps together are far more effective than any single one — and the Ukrainian multiplier is the **procedural record**. Because comments filed in time **must be considered**, because the discussion report and the comments themselves go on the **public register**, and because the administrative courts review the legality of decisions, a community that participates properly creates exactly the evidence a court needs. The distinctive advantages are the **online register**, the **compulsory hearing**, the developer-funded discussion, and **Aarhus membership** with a Compliance Committee that has demonstrably influenced Ukrainian law. The distinctive disadvantages are wartime strain, reconstruction pressure, and the fact that a considered-but-rejected comment still requires litigation to go further.

A note on cost: the register is free and online; filing comments costs nothing; attending a hearing costs travel. Administrative litigation is affordable by international standards, and Ukraine has environmental law organisations that take strategic cases. The costs that matter are expert input where the case turns on hydrology, air quality, or biodiversity, and translation and travel for rural communities.

Effectiveness Visualization



How to read this honestly. In Ukraine the strongest positions are **procedural**: an activity that should have been assessed and was not; a notification or announcement that was never properly published; a hearing that did not take place, or took place where affected residents could not attend; comments filed in time that the conclusion does not address; or a conclusion issued without reasons that engage the objections. These are provable **from the register itself**, which is the great practical advantage of the Ukrainian system — the evidence of the failure is usually in the same public file as the decision. What is much harder is a late intervention: comments outside the period **will not be considered**, and the law treats silence as absence of objection. So the calendar is the campaign, and the register is where you find it.

Step Importance Ranking (When All Combined)

1. **Comments filed within the period** — first, because they must be considered, they enter the public record, and everything later builds on them.
2. **Legal challenges** — the administrative court on procedure, with Aarhus arguments available.
3. **Documentation** — the substance that makes comments serious and gives a court something to act on.
4. **Local opposition** — volume of comments, attendance at the hearing, and hromada council engagement.
5. **Media** — raising cost and reaching the organisations that litigate.

Winning Ukrainian campaigns combined timely, substantive comments, a documented hearing, hromada support, and a

court challenge on a clean procedural defect.

What Ukrainian Campaigns Actually Show

A few patterns recur. **The register changed what is possible** — since the 2017 law replaced the Soviet-era system of state ecological expertise with an EU-modelled procedure, the notification, the report, the comments, the discussion report and the conclusion all sit in one public system, so a community can see a project coming and can prove afterwards what was and was not done. **Participation is legally weighted** — comments submitted in time are **subject to mandatory consideration**, late comments are **not considered**, and the developer bears the cost of the discussion. **The conclusion gates the permit** — it must be considered before permission for the activity is granted, and non-compliance can lead to **suspension or termination** of the activity. **And rights can be defended even in wartime** — when emergency measures narrowed the scope of assessment and closed public access to the register, Ukrainian environmental organisations campaigned, joined the Ministry's redrafting process, and **took the matter to the Aarhus Convention Compliance Committee**; the combination produced amendments that **restored the scope of assessment, brought reconstruction projects within it, and created a register open to the public** with authorisation and case-by-case protection of sensitive information. That episode is the single most useful precedent a Ukrainian community can know: **participation rights here are contested and defensible, not merely granted.**

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. In Ukraine most of this is a research task you can do online, and you should do it the day you hear of a project, because the comment period is short and unforgiving.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: the exact location and extent, the activity type and stage, and what is there now — **housing, gardens and agricultural land, rivers, lakes and groundwater, forest and steppe, protected areas and Emerald Network sites, and cultural heritage**. Download the **EIA report** from the register and list every admitted impact with its page reference. Pay particular attention to **water, air quality near settlements, forest and protected areas**, and, for reconstruction and waste projects, **contamination and debris**.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) whether the project is a **planned activity** subject to assessment, and whether it is **first or second category**; (b) therefore whether the **Ministry** or the **oblast authority** is handling it; (c) what is already in the **Unified Register** — the notification, the report, the announcement, any consultation responses; and (d) which **permits** will follow and from which bodies, and which **hromada council** controls local permissions.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a **negative EIA conclusion**; a conclusion with conditions that change the project; an activity **brought within assessment** that had been treated as outside it; a **conclusion or permit annulled** by the administrative court for procedural illegality; **local permissions withheld** by the hromada; or **suspension** for carrying on without compliance. Map them and pursue at least two.

Question 4: When Is the Decision Final?

This is the question that decides Ukrainian campaigns. The **public discussion period** runs from the announcement, and the announcement — with the **date, time and address of the hearing** — is published in the register and in print media. **Comments must be submitted within the period; late comments will not be considered**, and if none are received the law treats the matter as if there were no objections. So: check the register the day you hear of a project, note the closing date, and file inside it even if your evidence is incomplete. For court action, administrative challenges have their own strict time limits running from when you learned of the decision — consult a lawyer immediately once a conclusion or permit issues.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the developer and its owners, including through the state's open company data; whether the project is financed by public funds, international lenders, or reconstruction programmes, each of which carries its own environmental and social standards; whether land was acquired or changed designation before the project became public; and whether the activity is being framed as urgent reconstruction. Ukraine's open data infrastructure makes much of this genuinely accessible. Build a dated, sourced timeline.

Output of Step 1: a one-page fact sheet with the activity and its category, the responsible authority, the register entry references, the **comment deadline and hearing date**, the permits to follow, the hromada position, and the money map.

Worked example: which lever is actually open

Suppose a waste-processing facility is proposed on the edge of a hromada, upwind of housing and beside a river, and a resident notices a printed announcement. Working the questions: **Q1** — you open the **Unified Register**, download the **EIA report**, and list the admitted impacts on air and water. **Q2** — the register tells you the category and therefore whether the **Ministry** or the **oblast authority** decides. **Q3** — the live levers are: **comments within the period**, which must be considered; attendance at the **compulsory hearing**; hromada council opposition; and, if the conclusion issues on a defective procedure, an **administrative court** challenge. **Q4** — you note the **closing date and hearing date** from the announcement and work backwards, filing comments even before your technical review is finished, because late comments are not considered at all. **Q5** — open company data shows the developer and any public financing. In an afternoon, working mostly from a public website, you know the decision-maker, the deadline, the hearing, and the grounds — which is a better starting position than communities in most of the countries in this series enjoy.

STEP 2: DOCUMENTATION

Documentation in Ukraine has an unusual advantage and an unusual constraint. The advantage is that the developer's own case — the notification, the report, the announcement — is **published in full on a public register**, so you begin with the other side's documents rather than having to prise them out. The constraint is **time**: comments filed after the period will not be considered, so documentation must be organised to produce a usable submission fast, and then deepened afterwards for the court.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the activity, and do the fast parts first.

Water. Document the river, stream, lake, or groundwater affected: location, use, the settlements drawing on it, and its present condition, with dated photographs. Where a project involves discharge or abstraction, this is usually the core of the case.

Air and settlement distances. Record the distance from the works to the nearest housing, schools, and kindergartens, and the prevailing wind direction — a simple, checkable fact that carries weight for waste, industrial, and processing facilities.

Land, forest, and protected areas. Document agricultural land, forest, steppe, and any protected area or Emerald Network site, with boundaries where you can establish them. Protected status is a legal fact with immediate consequences, so establish it early.

Settlement, heritage, and use. Record housing, gardens, grazing, recreation, and cultural or memorial sites, and how many households are affected.

Wartime context, where relevant. Where the site has been affected by hostilities, record what is known about **contamination, unexploded ordnance, and damage** — this is both a safety matter and a material fact that an assessment must address.

How to hold it. Keep everything dated, located, and backed up, and hold it collectively. Because the register preserves the official record, your job is to preserve the local one.

LAYER 2: REPORT AND PROCEDURE ANALYSIS

Show what the project would do, and whether the procedure has been followed. Catalogue four things:

1. **Scope.** Is the activity subject to assessment at all, and has it been correctly categorised? Where a project — including a **reconstruction or modification project** — has been treated as outside assessment, that is a substantial ground, and the scope of assessment was itself the subject of successful advocacy during the war.
2. **The report's substance.** Mine the EIA report for admitted impacts with page references, and identify what is missing: alternatives not seriously examined, **cumulative effects** with other activities in the same area ignored, monitoring and mitigation stated in general terms only, and — in the Ukrainian context — the condition of the site after hostilities left unaddressed.
3. **The procedure, step by step.** Record: the date of the **notification** and where it was published; the date of the **announcement** and whether it stated the hearing's date, time and address; whether the **hearing actually took place**, where, and whether affected residents could realistically attend; the **closing date for comments**; and whether the **public discussion report** and the **consultation responses from authorities** were entered in the register as required.
4. **The treatment of comments.** After the conclusion issues, compare it against the comments filed. Comments submitted in time are **subject to mandatory consideration**; a conclusion that does not engage with them is vulnerable, and the register preserves both sides of that comparison.

Get expert eyes on it. A technical critique carries more weight when a qualified specialist signs it. Ukraine has strong technical institutes and universities, and its environmental law organisations can often arrange review. For air dispersion, hydrology, or protected-area impacts, an independent assessment is worth a great deal.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms:

- **Health** — the population within the affected radius, including children in schools and kindergartens, existing health burdens, and the specific exposure pathway.
- **Economy and livelihoods** — agricultural land, fisheries, small business, tourism and recreation affected, and property values where relevant.
- **Community** — displacement, loss of amenity or access, and the burden on a community that may already be hosting displaced people or repairing war damage.

Package this layer twice: a rigorous version in **Ukrainian** for the register, the authority, and any court, and a short plain-language version for community distribution.

How to Structure Your Documentation

- **Phase 1: Immediate (Days 1-7)** — the register entries, the deadline, the report, the fast baseline facts (distances, water, protected status).
- **Phase 2: Comments (Days 7 to the deadline)** — the substantive submission, filed **in time**, even if the technical review is incomplete.
- **Phase 3: Hearing (on the day)** — document the hearing itself: attendance, location, whether it was accessible, what was said and answered.
- **Phase 4: After the conclusion** — compare the conclusion with your comments, and build the court file.

Common Documentation Pitfalls (What Fails)

- **Missing the comment deadline** — the single fatal error; late comments are **not considered**.
- **Not watching the register** — the notification appears there first, and it is the earliest possible warning.
- **Not documenting the hearing** — attendance, accessibility, and what was said are procedural evidence you cannot recover later.
- **Only environmental data** — health and settlement facts make the case concrete.
- **Assuming a modification or reconstruction project is outside assessment** — check, and challenge if necessary.
- **Losing the local baseline** — the register preserves the official file, not your photographs.

Documentation Budget Breakdown (UAH)

Item	Low (volunteer)	Higher (supported)
Register downloads and printing	minimal	modest
Photography, mapping, measurements	minimal	modest

Expert or academic review	often free	moderate
Sampling or monitoring	modest	moderate
Legal advice and court fees	often supported	moderate
Travel to hearings and meetings	modest	modest

Ukraine is one of the cheapest countries in this series in which to build a documentary case, because the developer's own materials are free and online. Spend where it counts: **expert review** and **legal advice once a conclusion issues**.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Ukrainian case is on a single website, and the rest is in open registers. The job is knowing what to pull and when.

The Unified Register of Environmental Impact Assessment. Your primary source, holding: the **notification of planned activity**; the **EIA report**; the **announcement of public discussion** with the hearing details; **comments and proposals received**; the **consultation responses** from executive and local government bodies; the **public discussion report**; and the **EIA conclusion**. Note that access arrangements were changed during the war, so the register is open to the public but may require **authorisation**, with a mechanism for restricting genuinely sensitive information case by case — register for access early rather than at the deadline.

Print media announcements. The notification and announcement are also published in print media; keep dated copies, because publication dates matter procedurally.

The permitting bodies. Construction, land, water, forest and protected-area permissions, each with its own file.

The hromada council. Land-use documentation, detailed plans of territory, council decisions, and any consultation response the council filed.

Open data on the developer. Ukraine's open company and beneficial-ownership data, and public procurement data where public money is involved.

How to force a document open. Ukraine's **access to public information legislation** obliges public bodies to answer information requests within short statutory periods, with a right of appeal — and the **Aarhus Convention** underpins the right to environmental information specifically. Between the register and an information request, very little should remain hidden; where it does, the refusal itself becomes a ground.

Free and low-cost help. Ukraine has environmental law organisations with unusual depth in exactly this field — including bodies that took part in the negotiation and implementation of the Aarhus Convention, established the country's first environmental law clinic, and ran the campaign that restored participation rights curtailed during the war.

Approaching one of them early is the highest-value single step.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the register entry and the responsible authority, and the local-ally entries point you to the organisations and lawyers already working nearby.

Researchers for Hire, and Everyday Research Tools

If digging through corporate filings, agency files and environmental records is beyond a few volunteers, you can hire it out — and this lifts a real weight off novice activists. The field is **opposition research** (or, on the labour side, **corporate-campaign research** — the same methods unions use to expose an employer's finances and record, turned on a developer). For your side, seek **opposition-research firms**, **licensed private investigators** with paid records access, **investigative journalists and freelancers** (often the cheapest, and they publish what they find), **environmental-compliance auditors** to dissect a developer's regulatory record, and **public-records / freedom-of-information specialists** to pry files loose. The investigative tools they use — and that a determined activist can use directly — include **OpenCorporates** and **OCCRP Aleph** (company ownership and cross-border links, worldwide) and **DocumentCloud** (search and OCR large document dumps), with **SEC EDGAR**, **LittleSis** and **MuckRock** as United States examples; most countries have their own equivalents.

For everyday, subject-agnostic research, a small kit goes far: **AI assistants** — Claude.ai, ChatGPT, Google Gemini, and

Perplexity for sourced answers — are excellent for explaining a law, summarising a document, or drafting, so long as you **always verify** what they tell you, because they can invent citations; **Google Scholar** and Google's advanced search operators for studies and buried files; and the **Wayback Machine** for pages a developer or agency has quietly deleted.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

In Ukraine, organising is largely about **converting a deadline into a volume of substantive comments and a well-attended hearing**. The law does something unusual: it makes timely comments **legally consequential** — they must be considered — and it records them, and their treatment, on a public register. That means a community's organising work turns directly into legal evidence. It also means the reverse: silence within the period is treated by the law as an absence of objection.

Three principles carry special weight here: **the calendar governs everything** (organise backwards from the closing date, not forwards from your first meeting); **substance over signatures** (many individual comments each raising specific points force specific answers, in a way that a single petition does not); and **wartime realism and solidarity** (communities are stretched, many host displaced people, and volunteers are exhausted — so ask for small, concrete, time-bound contributions rather than open-ended commitment).

PHASE 1: FOUNDATION (Week 1)

Step 1a: Start with the register and the most affected. The day you learn of a project, find the entry, note the **deadline and hearing date**, and download the report. Then reach the households nearest the site and along the affected water body.

Step 1b: Affinity groups by concern. Let people join through what they care about — drinking water, air near the school, the river, agricultural land, forest, property values. In wartime Ukraine, concerns about health and children's exposure mobilise particularly strongly.

Step 1c: Contact an environmental law organisation immediately. Ukraine's environmental legal community is small, experienced, and reachable, and it knows the register, the scope questions, and the litigation route. Ask specifically about the **category**, whether the activity is properly within assessment, and the court time limits.

PHASE 2: PUBLIC LAUNCH (Weeks 1-4, inside the period)

Step 2a: Community meeting built around the deadline. Hold a meeting whose entire framing is the closing date: what the report says, what is at stake, and that comments must be filed by a specific day. Bring a **comment template** people can adapt, and help those without internet access to file.

Step 2b: Mass individual comments. Coordinate a volume of **individual, substantive comments** within the period, each raising specific points — the distance to the school, the abstraction from the river, the omitted cumulative effects — rather than a repeated form of words. They must be considered, and they enter the public file.

Step 2c: Turn out for the hearing — and document it. Attend the compulsory hearing in numbers. Assign people to **record attendance, the venue and its accessibility, the questions asked and the answers given**, and to keep a copy of everything distributed. If the hearing is moved, poorly announced, or held where affected residents cannot get to it, that record becomes a procedural ground.

Step 2d: Bring in the hromada council. Ask the council to file its own consultation response opposing the project, and to consider a formal decision. Council responses are entered in the register and carry institutional weight.

PHASE 3: COALITION EXPANSION (Months 1-4)

Step 3a: Broaden the alliance. Bring in neighbouring hromadas, downstream settlements, medical professionals and teachers where health and schools are at issue, farming and fishing associations, veterans' and displaced-persons' organisations where relevant, academics, and national environmental organisations.

Step 3b: Coalition agreements. Agree who coordinates the comment drive, who documents the hearing, who instructs lawyers, who speaks to the media, and who holds the file. Do it quickly; the timetable does not allow prolonged negotiation.

Step 3c: Build the court file as you go. From the start, keep: the register printouts with dates, the print announcements, the comments filed with proof of submission, the hearing record, and the technical review. If the conclusion issues, you may have a short window to act.

PHASE 4: SUSTAINED PRESSURE (Months 2-12)

Step 4a: Compare the conclusion with your comments. When the conclusion appears on the register, check whether it engages with the comments filed in time. Where it does not, that is your strongest litigation ground.

Step 4b: Go to the administrative court where warranted. With counsel, challenge the conclusion or the permit on procedural grounds, seeking suspension of the decision where works are imminent.

Step 4c: Public actions and media (ongoing) — with wartime judgment. Public meetings, petitions, local media, and peaceful gatherings are used and effective. But note that **martial law restricts public assembly**, that gatherings can raise genuine safety issues including during alerts, and that in areas near hostilities normal campaigning may be impossible. Take advice, keep everything lawful, and prefer written, documentary and legal routes — which in Ukraine are also the strongest.

Worked example: a community that unlocks the strong levers

A hromada learns from a printed announcement that a processing facility is planned upwind of the village school and beside the river. There is anger and talk of organising a meeting next month — which would place the meeting after the comment period closes. What converts the anger into force happens differently. First, one resident opens the **Unified Register**, finds the entry, and establishes two dates: the **closing date for comments** and the **date, time and address of the hearing**. Second, the group holds a meeting **within days**, framed entirely around that deadline, and distributes a **comment template** with three specific points — the distance to the school, the abstraction from the river, and the absence of any cumulative assessment with the existing facility nearby. Fifty households file individually and keep proof. Third, they ask the **hromada council** to file its own consultation response. Fourth, they attend the **hearing in numbers** and assign two people to record attendance, the venue, and the answers given. Fifth, they contact a **national environmental law organisation**, which confirms the category and reviews the report. When the conclusion issues, they compare it with the fifty comments — and where it fails to engage with them, they have both the ground and the proof, all preserved on a public register, for an **administrative court** challenge. The lesson generalises: **in Ukraine, the deadline you find on day one and the comments you file inside it are what make everything afterwards possible.**

Opposition Building Budget: Year-Long Campaign (UAH)

Low. The recurring costs are printing comment templates and materials, travel to the hearing and to meetings, communications, and occasional technical or legal fees. National organisations frequently provide legal support in significant cases. Keep transparent accounts, and prioritise spending on **expert review** and on **helping people without internet access to file comments**, which is often the difference between ten submissions and a hundred.

Hiring Help to Run the Campaign

You need not carry the whole campaign yourselves. A whole industry runs opposition campaigns for hire — the visible turnout at hearings, the public comment, the messaging and the media — known as **grassroots-for-hire** or **public-affairs / grassroots-advocacy** consulting. It usually serves whoever pays, most often the deep-pocketed side, but you can hire the same muscle for yours: **public-interest communications and PR firms, campaign and field-organising firms** that run turnout and canvassing, and, if the fight becomes a local vote, **ballot-measure consultants**. People outside that niche can carry a piece too — a **PR or crisis-communications firm, a campaign consultant, a digital-advocacy shop**, or a seasoned **community organiser** — taking weight off exhausted volunteers who feel they are carrying the opposition alone. Two rules hold. Hire them **transparently**, and never let anyone fake a grassroots front: that is *astroturfing* — dishonest, and ruinous if exposed; the aim is to amplify a real community, not fabricate one. And mind your **setting** — where public campaigning is repressed or dangerous this market may be absent and a visible "show" perilous, so favour trusted journalists and international allies over hired campaigners, and never let paid help expose your people.

STEP 4: LEGAL CHALLENGES

Ukraine's system is procedurally rich and publicly documented, which means most successful challenges are about

whether the procedure was followed, proved from the register itself. Three tracks — the assessment procedure, the courts, and the Aarhus route.

TRACK 1: THE ASSESSMENT PROCEDURE (the front door, and the foundation)

- **File comments within the period.** This is the single most important legal act available to a Ukrainian community. Comments submitted within the period are **subject to mandatory consideration**; those submitted afterwards **will not be considered**; and if none are received, the law treats the matter as though there were no objections. File in time even if incomplete.
- **Attend and document the hearing.** Public hearings are **compulsory**. Attendance and a careful record of the venue, accessibility, questions and answers both strengthen the substantive case and preserve procedural grounds.
- **Challenge the scope and category.** Where an activity — including a **reconstruction or modification project** — has been treated as outside assessment or placed in the wrong category, say so in writing to the authority. The scope of assessment has itself been the subject of successful national advocacy, so this is a live and legitimate argument.
- **Insist on the register entries.** The **public discussion report** and the **consultation responses** of executive and local government bodies must be entered in the register. Their absence is a documented procedural failure.
- **Use the hromada.** A council consultation response opposing the project is entered in the register and carries institutional weight.

TRACK 2: THE ADMINISTRATIVE COURTS (the decisive route)

- **Challenge the EIA conclusion.** Ukraine's administrative courts review the decisions, actions and omissions of public authorities. An **EIA conclusion** issued after a defective procedure — no proper notification, no genuine hearing, comments not considered, no reasons engaging the objections — is open to challenge and annulment.
- **Challenge the permit.** Because the conclusion must be **considered before the permit for the planned activity is granted**, a permit granted without a valid conclusion, or in disregard of it, is likewise vulnerable.
- **Seek suspension.** Where works are imminent, ask the court to suspend the effect of the decision, since clearing, construction and discharge cause irreversible harm.
- **Move promptly.** Administrative time limits are short and run from when you learned of the decision. Instruct counsel the day the conclusion appears on the register.
- **Enforcement.** Carrying on a planned activity without complying with the assessment requirements can lead to **temporary prohibition (suspension) or termination** of the activity — a route worth invoking with the State Environmental Inspectorate where a developer proceeds regardless.

TRACK 3: THE AARHUS ROUTE (the systemic lever)

- **Aarhus as argument.** Ukraine is a Party to the **Aarhus Convention**, and its guarantees on access to information, public participation and access to justice are legitimate and useful arguments before Ukrainian authorities and courts — reinforced by the fact that the EIA Law exists to transpose EU standards.
- **Aarhus as remedy.** Where a failure is systemic rather than individual, members of the public may bring a **communication to the Convention's Compliance Committee**. This is not theoretical in Ukraine: when wartime measures narrowed the scope of assessment and closed public access to the register, environmental organisations brought the matter to the Committee, whose recommendations — combined with domestic campaigning and participation in the Ministry's redrafting — contributed to amendments that **restored the scope of assessment, brought reconstruction projects within it, and reopened the register to the public** with authorisation and case-by-case protection of sensitive information.

The three legal challenge types

TYPE 1: THE ASSESSMENT PROCEDURE (the front door)

Timely comments, hearing attendance and documentation, scope and category challenges, and insistence on the register entries.

TYPE 2: THE ADMINISTRATIVE COURTS (the decisive route)

Annulment of the conclusion or permit for procedural illegality, with suspension where works are imminent.

TYPE 3: THE AARHUS ROUTE (the systemic lever)

Convention arguments domestically, and a communication to the Compliance Committee where the failure is systemic.

Legal Strategy Decision Tree

1. **Is the comment period open?** → File substantive comments **now**; nothing else you do matters as much.
2. **Has the activity been treated as outside assessment?** → Challenge the scope in writing; this is a live national issue.
3. **Is the hearing scheduled?** → Attend, and assign people to document it.
4. **Has the conclusion issued?** → Compare it against your comments, and instruct counsel immediately on the **administrative court** route and time limits.
5. **Is the failure systemic across projects?** → Consider the **Aarhus Compliance Committee** route, which has produced legislative change in Ukraine.

Litigation Success Factors

Comments filed in time, with proof; a documented hearing; a clean procedural defect visible **on the register**; a conclusion that fails to engage with the objections; prompt filing within the administrative time limits; suspension sought where works are imminent; and experienced counsel, ideally from an organisation that litigates in this field.

What to Avoid: Legal Failures

Missing the comment period — after which the law treats you as having had no objection; failing to document the hearing; assuming a reconstruction or modification project is outside assessment; delaying instruction of counsel past the administrative time limit; and arguing the merits of the project when the provable point is the procedure.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Ukraine.

Comments filed in time but not addressed in the conclusion → mandatory consideration breached (the strongest ground). Feed it with: your filed comments with proof of submission, and the conclusion's text.

Activity treated as outside assessment, or wrongly categorised → unlawful scope. Feed it with: the activity's true nature and scale, and the legal criteria.

Notification or announcement not properly published → defective procedure. Feed it with: the register entries and dates, and the print media copies.

Hearing not held, inaccessible, or a formality → participation denied. Feed it with: your attendance record, the venue and its accessibility, and what was and was not answered.

Public discussion report or consultation responses missing from the register → procedural failure. Feed it with: the register printouts showing the gap.

Threat to water, air near settlements, or a protected area → substantive impact grounds. Feed it with: distances, users, protected status, and expert review.

Cumulative effects with existing activities ignored → deficient report. Feed it with: a map of the other installations and the report's silence.

Systemic denial of participation or information → Aarhus argument, and a Compliance Committee communication. Feed it with: the pattern across projects and your correspondence.

The pattern: **lead with the procedural defect, prove it from the register, and connect it to concrete harm.**

STEP 5: MEDIA STRATEGY

Media matters in Ukraine because the country's civil society is strong and well-networked, because reconstruction

decisions are politically salient, and because the comment period only works if people know it exists.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the **register entry**, the page of the report admitting the impact, the distance from the works to the school, a named resident, and the closing date. Make it easy, and never give a fact you cannot stand behind — accuracy matters especially now, when disinformation is a live concern and a single wrong claim will be used to discredit the campaign.

The Newsworthiness Formula

Local stakes + a credible threat + a documented procedural failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Ukraine: **children's health and schools near industrial or waste facilities**, **rivers and drinking water**, and **reconstruction done without proper assessment** — the last increasingly potent as rebuilding accelerates.

Know the Outlets That Cover This Beat

Map the national outlets with environmental and investigative desks, the specialist environmental and energy publications, regional and hromada-level media which reach affected residents directly, and — where international financing is involved — the outlets that follow reconstruction funding.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to residents and your experts, and always point them to the **register entry**, which lets them verify everything independently.

Why media matters even when it doesn't make the front page

Coverage spreads word of the **deadline**, which is itself decisive; it reaches the environmental law organisation that will take the case; it reaches specialists willing to review the report; and, where reconstruction money is involved, it reaches funders whose standards require proper assessment and consultation.

Sample Media Timeline

Launch with the deadline and the register entry; refresh at each milestone — the volume of comments filed, the hearing and how it was run, the conclusion and whether it engaged with objections, the court filing, and any suspension.

Media Measurement

Track coverage, but measure what matters: whether comments arrive in volume, whether the hearing is properly held, whether the conclusion addresses the objections, and whether works have stopped.

Amplifying at Scale — Media Help for Hire

Beyond pitching reporters yourselves, you can pay to spread the story at scale — different from a single advert or one call to a local outlet, and available at any reach from local to global. **Public-relations and communications firms** run earned-media campaigns — placing op-eds, orchestrating coverage, staging the media push; for the cause side, public-interest firms such as Fenton, BerlinRosen and M+R work for advocacy groups and unions, not only corporations. **Press-release / newswire distribution services** send a release across a wide network of journalists and outlets — PR Newswire, Business Wire and GlobeNewswire at the global, higher-budget end; EIN Presswire, PRWeb and eReleases far cheaper and nonprofit-friendly, some with cause-specific wires. And **digital and social amplification** shops run targeted paid campaigns and creator partnerships. Two rules: amplify a *true* story from a *real* community — never manufacture fake outrage; and where public visibility is dangerous, favour trusted journalists and international allies over paid amplification.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced, and write to authorities in **Ukrainian**. Submit comments by the means specified in the announcement and **keep proof of submission with its date** — in a system where late comments are not considered, proof of timely filing is the foundation of everything. Have a lawyer review anything heading to court.

8A. Email to a journalist (story pitch)

Subject: [Hromada, Oblast]: comments on [project] close [date] — register entry and report attached

Dear [name],

An announcement published on [date] opened the public discussion on the environmental impact assessment for [project] at [location]. The **register entry is [number/link]**. The report itself admits [specific impact, quoted, with page number], and the works would be [distance] from [the school / the river from which [number] households draw water].

Comments close on [date], and under the EIA Law comments filed after that will not be considered. The public hearing is scheduled for **[date, time, address]**.

Residents of [settlements] are filing comments and have asked the hromada council to respond. I can connect you with residents and our technical reviewer, and everything is verifiable from the register. Could we speak this week?

[Name] · [Community group] · [phone] · [email]

8B. Individual comment during the public discussion

To: [the Ministry of Environmental Protection and Natural Resources / the Department of Ecology and Natural Resources of [Oblast] State Administration] Subject: Comments and proposals on the EIA report for [project], register case no. [number]

I am [name], residing at [address] in [settlement], within [distance] of the proposed activity. I submit the following comments and proposals within the period announced on [date]:

1. **Water.** [The activity involves discharge to / abstraction from [water body], from which [number] households in [settlement] draw water. The report addresses this at p. [x] but does not assess [specific omission].]
2. **Proximity to housing and schools.** [The works are [distance] from [school/kindergarten/housing], and the prevailing wind is from [direction]. Dispersion is assessed at p. [x] on assumptions that do not reflect [fact].]
3. **Cumulative effects.** [The report does not assess the combined effect of this activity with [existing facility] operating [distance] away.]
4. **Alternatives.** [Alternative sites/technologies are not seriously examined; see p. [x].]
5. **Monitoring and mitigation.** [The proposed measures are stated in general terms and are not verifiable.]

I request that these comments be **considered in the assessment**, that they be entered in the Unified Register, and that the conclusion state how each has been addressed.

[Signature, name, address, date. Retain proof of submission.]

8C. Request that the hromada council file a consultation response

To: the Chair of [name] Hromada Council Subject: Request for the council's response in the public discussion on [project]

Dear [name],

The public discussion on the EIA report for [project] at [location] is open until **[date]** (register case no. [number]). Executive bodies and local self-government bodies are consulted in this process, and their responses are entered in the Unified Register.

We, residents of [settlements], request that the council: (i) file a response setting out the community's concerns regarding [water / distance to the school / agricultural land]; (ii) place the matter on the agenda of the next session; and (iii) consider what local permissions within the council's competence would be required and whether they should be withheld.

We attach our documentation and are available to brief the council.

[Signatories, settlements, date]

8D. Letter challenging scope or category

To: [the Ministry / the Oblast Department of Ecology and Natural Resources] **Subject:** Request to subject [project] to environmental impact assessment / to reclassify it

We understand that [project] at [location] [is not being subjected to environmental impact assessment / has been treated as a second category activity].

We submit that this is incorrect, because: [the activity involves [construction / reconstruction / modification] of [scale]]; [it affects [protected area / water body / settlement]]; [its capacity or extent exceeds [criterion]]; and [the cumulative effect with [existing activity] is material].

We note that the scope of environmental impact assessment, including in relation to reconstruction projects, has been the subject of recent legislative clarification, and we request that the activity be brought within assessment and that the appropriate category be applied.

[Signatories, date, contact]

8E. Request for information

To: [the authority] **Subject:** Request for access to public information

Under the legislation on access to public information, and having regard to Ukraine's obligations under the **Aarhus Convention** on access to environmental information, I request copies of: 1. the **notification of planned activity** and the **announcement of public discussion** for [project], with the dates and places of their publication; 2. the **comments and proposals** received during the public discussion, and the **public discussion report**; 3. the **consultation responses** of executive bodies and local self-government bodies; 4. the **EIA conclusion** and the materials on which it is based; 5. any decision concerning the scope or category of the activity.

I request a reply within the statutory period, and, in the event of refusal, a statement of its legal basis.

[Name, address, date]

8F. Record of the public hearing (for your own file, and to attach to submissions)

Record of the public hearing on the EIA for [project]

Date and time: [] · **Venue:** [] · **As announced on:** [date, publication] **Attendance:** approximately [number]; residents of [settlements] present: [number]. **Accessibility:** [distance from affected settlements; transport available; whether the venue could accommodate those attending; whether the announcement reached affected residents].

Conduct: [who chaired; whether the developer presented; whether residents were permitted to speak and for how long]. **Questions asked and answers given:** [list, with names where consented]. **Questions not answered:** [list].

Materials distributed: [list; copies retained].

Prepared by [names], [date]. Photographs and, where lawful and consented, recordings retained.

8G. Press release (effective)

FOR IMMEDIATE RELEASE — [date]

Residents of [hromada] file [number] comments against [project]; comments close [date]

Residents of [settlements] have filed [number] individual comments on the environmental impact assessment for [project] at [location] (register case no. [number]), citing [top two grounds]. The report itself admits [quoted impact, page reference]. The works would be [distance] from [the school / the river].

"[Short, human quote from a resident]," said [name]. Under the EIA Law, comments filed within the period **must be considered**, and the conclusion is required to be taken into account before any permit is granted. The public hearing takes place on [date].

Contact: [name, phone]. The register entry, the report, and photographs are available; everything is independently verifiable from the register.

8H. Instruction to counsel (administrative court challenge)

Subject: Proposed challenge to the EIA conclusion for [project], published [date]

Dear [counsel],

The EIA conclusion for [project] (register case no. [number]) was published on **[date]**; we became aware of it on [date]. We instruct you to advise on and, if appropriate, file a claim in the administrative court to annul the conclusion [and the permit issued on [date]], and to seek **suspension** of the decision, as works are expected to begin on [date].

Proposed grounds: (i) comments filed within the period on [dates] were **not considered**, contrary to the requirement of mandatory consideration; (ii) [the announcement/notification was not published as required]; (iii) [the public hearing was not genuinely accessible to affected residents]; (iv) [the public discussion report / consultation responses were not entered in the register]; and (v) [the activity was wrongly treated as outside assessment / wrongly categorised].

We can provide: register printouts with dates; proof of submission of [number] comments; the hearing record; print media copies; and a technical review by [expert]. Please advise urgently on the **time limits**.

[Date, signature]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the **register case number** and page references, and write to authorities in Ukrainian. **The deadline is the whole game:** comments filed within the announced period must be considered, and comments filed afterwards will not be — so file in time and **keep proof of submission**. Administrative court time limits are short and run from when you learned of the decision. And in areas affected by hostilities, prioritise safety over procedure.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a campaign — and in Ukraine, because the documents are online and the deadline is fixed, an individual acting alone in a single week can still do something legally consequential. In rough order of impact for the effort:

1. **Find the entry on the Unified Register and write down two dates:** the **closing date for comments** and the **date, time and address of the hearing**. Register for access early if authorisation is required.
2. **File a comment within the period** (Section 8B). This is the decisive act: comments filed in time **must be considered**; comments filed late **will not be**; and silence is treated as absence of objection. File even if your evidence is incomplete — you can add substance later, but you cannot recover the deadline.
3. **Keep proof of submission**. Without it, you cannot later show that a comment was filed in time and ignored — the strongest litigation ground in this system.
4. **Attend the hearing and record it** (Section 8F): attendance, venue, accessibility, questions asked and answers given.
5. **Ask the hromada council to file its own response** (Section 8C); council responses go on the register.
6. **Check whether the activity should be assessed at all** — particularly for reconstruction or modification projects — and write if it should not have been excluded (Section 8D).
7. **Contact an environmental law organisation**, and when the conclusion appears, **compare it with your comment** and take advice at once on the court time limit.

If you do only the first three, you have preserved the deadline, created a legally consequential document, and secured the proof that makes a later court challenge possible. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Ukraine's tilt is unusual in this series: the law and the register are among the most transparent described in these guides, and the pressure comes from **war, emergency powers, and the coming scale of reconstruction**.

What This Tilt DOES (and DOESN'T DO)

The tilt means institutions are stretched; martial law has justified derogations, including at one point a narrowing of assessment scope and the closing of public access to the register; assembly is restricted; reconstruction will bring intense pressure to build fast; and in areas affected by hostilities or occupation the ordinary mechanisms do not function at all. It does **not** remove your position: the **Unified Register** is public again; **public hearings remain compulsory**; **comments filed in time must be considered**; the **conclusion gates the permit**, and non-compliance can bring **suspension or termination**; the **administrative courts** review legality; Ukraine is an **Aarhus Party**; and — the decisive precedent — **participation rights curtailed during the war were successfully argued back**.

Reading Your Tilt: Responsive, Mixed, Constrained

- **Register entry open, deadline live, community able to organise.** The strongest position: file, attend, document, and you have both leverage and, if needed, a case.
- **Mixed.** A reconstruction or modification project whose assessment status is unclear, or a hearing held in form only. Weight shifts to the scope challenge, the hearing record, the hromada, and the courts.
- **Constrained.** Areas near hostilities, occupied territory, or projects processed under emergency arrangements. Here safety comes first, documentation may be all that is possible, and national organisations and international mechanisms may be the only realistic route.

Documented Ukrainian Dynamics

The record shows both the strength and the strain. **The system was rebuilt to European standards** — the 2017 EIA Law transposed the EU assessment directive and replaced the Soviet-era state ecological expertise, introducing the **notification, the report, compulsory public hearings, the conclusion, and the Unified Register**, with comments filed in time **subject to mandatory consideration**, late comments excluded, and the **developer bearing the cost of the public discussion**. **The conclusion has teeth** — it must be considered before a permit issues, and non-compliance can bring **temporary prohibition or termination** of the activity. **War narrowed the space** — emergency measures shrank the scope of assessment and closed public access to the register. **And civil society narrowed it back** — Ukrainian environmental organisations campaigned for the restoration of their newly acquired participatory rights, took an active part in the Ministry's drafting process, and **brought the issue to the Aarhus Convention Compliance Committee**, which issued clear recommendations; together these efforts produced **amendments that overturned the shrinking of assessment scope — so that reconstruction projects are subject to assessment — and introduced a register open to the public**, while accommodating wartime security through authorisation and case-by-case limits on genuinely sensitive information. **Damage is being formally recorded** — the State Environmental Inspectorate compiles assessments of environmental damage, published through a national platform. The lesson: **in Ukraine, environmental participation is a right that has already been defended once under the hardest possible conditions**.

Assessment Framework — Determine Your Situation

Ask: is there a register entry, and when does the comment period close? Is the activity properly within assessment and correctly categorised? Is the hearing scheduled, and can affected residents actually reach it? Will the hromada council respond? Is the project financed by public or international reconstruction funds with their own standards? Is the area safe enough to organise openly? The answers tell you whether to run a full participation campaign, a scope challenge, or documentation only.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Ukrainian environmental campaigning has used public meetings, petitions, local media, and peaceful gatherings, and civil society is strong and experienced. But **martial law restricts public assembly**, gatherings raise genuine safety questions including during air alerts, and in areas near the front line normal campaigning is impossible. Take advice, keep everything lawful, and recognise that in Ukraine the **written, documentary and legal routes are not merely safer but genuinely stronger** — a timely comment on the register does more work than a demonstration.

Honest Assessment

Constrained fights are harder, and Ukraine's are being fought while the country is at war and preparing to rebuild at enormous scale. But "harder" is not "hopeless": Ukrainian communities and organisations built an EU-standard assessment system, and when war narrowed it, they restored it — including bringing reconstruction projects within assessment, which will matter more each year. Concentrate force where the tilt is weakest — **the deadline, the register, and the procedure** — and get legal help early.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and in Ukraine it has been a central national concern for a generation. Read your situation actor by actor, and use the country's unusually good open data rather than accusation.

The assessment consultants. Reports are commissioned and paid for by developers. Signs: alternatives dismissed in a paragraph, cumulative effects ignored, dispersion or hydrology modelling built on convenient assumptions. Lever: independent expert review, filed as a comment so it must be considered.

The authority's treatment of comments. The most consequential single failure: comments filed in time that the conclusion does not engage with. Because both the comments and the conclusion are on the **register**, this is unusually easy to prove. Lever: the comparison itself, and the administrative court.

Scope and category decisions. Excluding an activity from assessment, or placing it in the lower category, is the cleanest way to reduce scrutiny — and the narrowing of scope during the war shows the stakes. Lever: the scope challenge, and the amended law's clarification that reconstruction projects are covered.

Local permissions and land. Land designation changes, detailed plans of territory, and local permits are where local capture typically operates. Lever: council records, open land and company data, and deputies willing to ask questions.

Reconstruction financing. Money arriving quickly with political urgency creates pressure to shortcut. Lever: where international or public funds are involved, the **environmental and social standards attached to that financing** are enforceable expectations, and funders respond to documented procedural failure.

How to act on it, safely. Document from the register and open data before you speak. Route genuine allegations to the relevant oversight bodies and, where public procurement or funds are involved, to the institutions that supervise them — and above all into your **comments and your court claim**, where they are protected and consequential. Do not publish unproven accusations about named individuals: in the current information environment that damages the campaign's credibility faster than anywhere, and the procedural case you can prove from the register is stronger anyway.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Ukraine the timeline is dominated by one fixed point — the **closing date for comments** — and everything before it is preparation while everything after it is litigation and monitoring.

Realistic 12-Month Campaign Timeline

Week 1 (Find the dates). - Locate the entry in the **Unified Register**; register for access if authorisation is required. - Note the **closing date for comments** and the **date, time and address of the hearing**. - Download the **notification, the EIA report and the announcement**, and keep the print media copies. - Establish the **category** and therefore whether the Ministry or the oblast authority decides. - Contact an **environmental law organisation**.

Weeks 1-4 (Inside the period). - Hold the community meeting framed around the deadline; distribute a **comment template**. - File **mass individual comments** with **proof of submission** (Section 8B). - Ask the **hromada council** to file its own consultation response (Section 8C). - Where the activity appears to have been excluded from assessment or wrongly categorised, file the **scope challenge** (Section 8D). - Begin the fast baseline documentation: distances to housing and schools, water use, protected status.

The hearing (as scheduled). - Attend in numbers; assign people to complete the **hearing record** (Section 8F): attendance, venue, accessibility, questions asked and answered. - Distribute a short plain-language summary of the community's objections.

Months 2-4 (Conclusion and comparison). - Watch the register for the **public discussion report** and the **consultation responses**, and note any that are missing. - When the **conclusion** appears, compare it line by line against the comments filed, and identify every objection it fails to engage with. - Take legal advice **immediately** on the

administrative court time limits (Section 8H). - Complete the technical review and the health and economic layer.

Months 4-12 (Litigation and permits). - Where warranted, file the **administrative court claim** to annul the conclusion or the permit, seeking **suspension** if works are imminent. - Track the **permits** that follow, and object where they proceed without or contrary to the conclusion. - Report any activity carried on without compliance to the **State Environmental Inspectorate**, which can pursue prohibition or termination. - Sustain media and hromada engagement.

Beyond 12 months. - Litigation may run for a year or more; keep the register printouts, the comments with proof, and the hearing record intact. - Watch for **modifications, expansions and reconstruction phases**, each of which may require fresh assessment — a point the amended law makes clearer than before. - Where a failure recurs across projects, consider the **Aarhus Compliance Committee** route, which has produced legislative change in Ukraine before.

Warning Signs — Act Early

A notification appearing on the register for your area; an announcement in a local paper you do not usually read; survey teams or geological works; a land designation change at the council; a reconstruction project described as urgent and exempt; equipment arriving before any conclusion is published. Each is a trigger to **open the register that day** — because in Ukraine the difference between a strong campaign and no campaign is usually whether someone checked in time.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: find the register entry immediately; organise backwards from the closing date; file **substantive individual comments in time with proof**; attend and **document the hearing**; get the hromada to respond; challenge scope where a project has been excluded; compare the conclusion against the comments; and instruct counsel the day it publishes. Losing campaigns: hold their first meeting after the period closes; file a single petition instead of many specific comments; keep no proof of submission; leave the hearing undocumented; and discover the court time limit too late.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Ukraine takes several forms, and it is worth naming them so you recognise a win when you get one: - a **negative EIA conclusion**, or one conditioned strongly enough to change the project; - an activity **brought within assessment** that had been treated as outside it — including reconstruction and modification projects; - **objections engaged with on the record**, so that mitigation and monitoring commitments become part of the decision and then of the permits; - a **conclusion or permit annulled** by the administrative court for procedural illegality, or **suspended** while the case runs; - an activity **prohibited or terminated** for proceeding without compliance; - **local permissions withheld** by the hromada council; - and, at the systemic level, **participation rights defended and restored** — as Ukrainian organisations achieved when wartime measures narrowed assessment and closed the register.

Ukrainian communities and organisations have achieved all of these, the last of them under conditions harder than any other country in this series faces.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. If the comment period is open, everything else waits — file first. If the conclusion has issued and fails to engage with comments filed in time, that is a strong case and worth pursuing quickly, because the time limits are short. If the period was missed, shift to the permits that follow, to the scope question for any modification, and to monitoring — and note that later phases and expansions can reopen assessment. If you are in an area affected by hostilities, safety governs everything, and documentation for later use is a legitimate and valuable strategy in itself.

The Bottom Line

Ukraine is fighting a war and preparing to rebuild at enormous scale, its institutions are stretched, and emergency powers have at times narrowed environmental participation. But its system gives communities more transparency than most of the countries in this series. Under the **Law on Environmental Impact Assessment No. 2059-VIII**, adopted in 2017 to transpose EU standards and replace the Soviet-era state ecological expertise, a **planned activity** requires a published **notification**, an **EIA report**, **compulsory public hearings**, and an **EIA conclusion** that must be considered **before**

any permit issues — with **suspension or termination** available where an activity proceeds without complying. The **Unified Register** puts the notification, the report, the comments, the discussion report and the conclusion in one public place, so a community can see a project coming and prove afterwards what was and was not done; **comments filed within the period must be considered**, while late comments will not be; and the **developer pays for the public discussion**. Behind it stands the **Aarhus Convention** — and the fact that when war narrowed these rights, Ukrainian organisations campaigned, joined the redrafting, went to the Convention's Compliance Committee, and **won the scope of assessment back, including for reconstruction projects, along with a register open to the public**. Communities that open the register the day they hear of a project, organise backwards from the closing date, file substantive comments in time and keep the proof, document the hearing, bring in the hromada, and instruct counsel the moment the conclusion publishes have changed projects, annulled decisions, and defended the right to be heard itself. No single step wins; the combination does. Start today by finding the entry and writing down the closing date.